

The U.P. Electricity (Regulation of Distribution and Consumption) Order, 1977

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State of Uttar Pradesh - Act

The U.P. Electricity (Regulation of Distribution and Consumption) Order, 1977

UTTAR PRADESH

India

The U.P. Electricity (Regulation of Distribution and Consumption) Order, 1977

Rule THE-U-P-ELECTRICITY-REGULATION-OF-DISTRIBUTION-AND-CONSUMPTION-ORDER-1977 of 1977

Published on 7 April 1977

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The U.P. Electricity (Regulation of Distribution and Consumption) Order, 1977

Published vide Notification U.P. Gazette, (Extraordinary), dated 7th April, 1977, pages 8-13, vide Notification No. 1317-P-3-77/22-216-77, dated April 7, 1977

Whereas the State Government are of opinion that it is necessary and expedient so to do for securing life of the community and for securing the equitable distribution of electrical energy to providing for regulated distribution and consumption thereof;

Now, therefore, in exercise of the powers conferred by Rule 114 of the Defence and Internal Security of India Rules, 1971, read with Section 21 of the General Clauses Act, 1897, the Governor is pleased to make the following Order:

1.

Short title, extent and commencement.

- (i) This order may be called the Uttar Pradesh Electricity (Regulation of Distribution and Consumption) Order, 1977.

(ii)

It shall extend to the whole of Uttar Pradesh.

(iii)

It shall come into force at once.

2.

Definitions.

- In this Order, unless the context, otherwise requires,-

(a)

"Factory" , means a factory as defined in the Factories Act, 1948, but does not include a factory in which no manufacturing process is being or is ordinarily carried on with aid of power;

(b)

The expression 'Shop and Commercial establishment' have respectively the meaning assigned to them in the Uttar Pradesh Dookan Aur Vanija Adhistan Adhiniyam, 1962.

3.

[Staggering of holidays of factories.]

[Substituted by (Third Amendment) Order, 1981, dated 2.11.81. Now deleted by Notification No. 6759-P-3-84-23, dated 26.8.1984.]

4.

[Hours for use of energy by shops and establishment.]

[Omitted by (Third Amendment) Order, 1983, dated 26.12.1983.]

5.

[Power of entry, search, etc.]

[Omitted by (Second Amendment) Order, 1983, dated 26.12.1983.]

6.

Compulsory cut in consumption of energy and demand.

- [(1) An industrial consumer who has his own source of thermal generation of energy and that source by itself enables him to obtain the extent of power or more which is allowable to him from time to time by Uttar Pradesh State Electricity Board, shall observe a power cut of 100 per cent on the power supplied by Uttar Pradesh State Electricity Board.

(2)

In respect of electrical energy consumed by the following industries having a load above 100 BHP/100KVA/75KW receiving power from the Uttar Pradesh State Electricity Board, a power cut mentioned against each shall be observed by them in their highest demand recorded in any single month during the twelve months from April 1983 to March 1984, or contracted demand, whichever is less and also on maximum energy consumed in any month during the above period:

Fertilizers

30% (per cent)

Cement, BHEL Units, I.D.P.L., Rishikesh/Dehradun

50% (per cent)

Provided that the permissible demand after the cut shall in no case be less than 100 BHP/100 KVA/75 KW.

(3)

All continuous and non-continuous process industries (excluding atta chakkies, automobile service and air filling stations, sugar mills, cold storages, petrol pumps) and also industries in sub-clause (2) shall not use three-phase power for three days in a week as specified in Schedule "A" for each district:

Provided that the above industries shall be allowed three-phase power up to 10 per cent of their highest demand recorded in any month during April 1983 to March 1984, or contracted demand, whichever is less, and also energy to this extent during the period on the closure days for the purpose of light and fan, water supply and workshop.

(4)

All rolling and re-rolling mills receiving power from Uttar Pradesh State Electricity Board shall use energy for 8 hours only every day during the period specified by the Uttar Pradesh State Electricity Board from time to time.

(5)

All ore/induction furnaces receiving power from Uttar Pradesh State Electricity Board shall use energy for 10 hours per day only in alternate weeks in accordance with directions issued by the Uttar Pradesh State Electricity Board from time to time:

Provided that to the said ore/induction furnaces and rolling and re-rolling mills mentioned in clauses (4) and (5), the consumption of power up to 10 per cent of the demand recorded during the 12 months from April 1983 to March 1984, or the contracted demand, whichever is less, and also energy to this extent during the above period shall be allowed during the hours, the supply is not available for manufacturing purposes to meet the requirements of light and fan, tube-wells, repair workshop cranes, blowers, twisting machines and scrap processing machines.

(6)

Power cuts under sub-clauses (3), (4) and (5) shall not be applicable in Hill region comprising Almora, Pithoragarh, Tehri-Garwal, Uttar Kashi, Chamoli, Naini Tal and Dehra Dun districts.]

[Substituted by (Sixth Amendment) Order, 1984, dated 24.10.1984.]

7.

[Exemption. - The cut referred to in clause 6 shall not apply to the electrical connections of all Government Hospitals, Medical Colleges, and other recognised hospitals, waterworks, sewage pumping works and POL (Petroleum, Oil and Lubricants) storage points owned by the Indian Oil Corporation Ltd, tube-wells and pumping sets used for irrigation purposes, State Lift Irrigation Schemes and State Tube-wells, State Pumped Canals, Railways traction, Defence and Military installations, newspaper printing press and Government presses, milk chilling and processing centers, Fruit preservation industries, cold storages, sugar mills, All India Radio Stations, Television Stations, Earth Satellite Stations, Aerodromes, Central and State Government offices and the industries getting supply as per rural Schedule]

[Substituted by (Second Amendment) Order, 1983, dated 6.12.1983.]

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8.

Restrictions on using electrical energy during certain hours.

- [(a) Any non-continuous process industry other than petrol pump, automobile service and air filling station receiving supply from Uttar Pradesh State Electricity Board on any day not using electrical energy from 18.00 to 22.00 hours between 1st March to 30th September and from 17.00 hours to 21.00 hours between 1st October to 28/29th February each year.]

[substituted by (Fourth Amendment) Order, 1979, dated 17.10.1979.]

(b)

[* * *]

[Deleted by (Third Amendment) Order, 1980, dated 17.7.1980.]

(c)

All Shops and Commercial establishments shall observe the hours of business from [9 a.m. to 8 p.m.]

[Substituted by (First Amendment) Order, 1979, dated 17.10.1979.]

hours on all days of the work other than their close day.

(d)

[(i) All Corporation towns enumerated in Schedule 'B' of the said order shall not get supply daily for 3 hours during the period specified by the Uttar Pradesh State Electricity Board from time to time.

[Substituted by (Sixth Amendment) Order, 1983, dated 25.10.1984.]

(ii)

All Special Class Towns enumerated in Schedule 'C' of the said Order shall not get supply daily for four hours during the period specified by the Uttar Pradesh State Electricity Board from time to time.

(iii)

All District Headquarters and towns other than those mentioned in Schedules 'B' and 'C' towns having population above 25,000 according to the census of 1981 shall not get supply for 5 hours every day during the period specified by Uttar Pradesh State Electricity Board from time to time.

(iv)

All Government hospitals, Medical Colleges and other Hospitals, Wireless Stations, All India Radio, Television Stations and Earth Satellite Station, Waterworks and all Petroleum, Oil and Lubricants storage points owned by Indian Oil Corporation Ltd., or Bharat Petroleum Corporation situated in towns mentioned in sub-clauses (i), (ii) and (iii) shall

remain exempted from the above cuts.

(v)

All other towns having population above 15,000 according to the census of 1981 shall get only two-phase supply in the evening for 5 hours between 5 p.m. to 10. p.m. for light and fan in addition to the normal schedule of supply issued by the Uttar Pradesh State Electricity Board for rural areas from time to time.

(vi)

Supply to rural areas shall be given as per Schedule issued by the Uttar Pradesh State Electricity Board from time to time.

(vii)

The Schedule of supply for rural areas and cut in towns as aforesaid shall not be applicable to Hill and Bundelkhand Regions.]

(dd)

[All District Headquarters shall be subjected to daily closure of two hours in each sector between 7.00 a.m. to 11.00 a.m. through a roistering programme in these towns); provided that supply to essential services such as Waterworks, Hospitals, All India Radio and Indian Oil installations shall be ensured to the maximum extent possible during the aforesaid period.]

[Added by (Second Amendment) Order, 1983, dated 6.12.1983.]

(e)

[* * *]

[Deleted by (First Amendment) Order, 977.]

9.

[

[Substituted by Notification 3680-P-3/84-23, dated April 30, 1984.]

Without prejudice to the provisions contained in Section 42 of the Indian Electricity Act, 1910, all Chief Zonal Engineers, Superintending Engineers, Executive Engineers, Assistant Executive Engineers and Assistant Engineers of the U.P. State Electricity Board, the Chief Electrical Inspector, all Deputy Electrical Inspectors and Assistant Electrical Inspectors to the State Government are authorised to disconnect the supply summarily without notice in relation to such installations as are found upon inspection made by them to have contravened the provisions of this Order.

The supply shall remain disconnected for the period specified below:

(a)

Contravention first in point of time

—

5 days,

(b)

Contravention second in point of time

—

10 days,

(c)

Contravention third in point of time

—

20 days,

(d)

Contravention beyond third point of time

—

Permanently:

Provided that for the purposes of this clause any contravention prior to May 1, 1984 shall not be taken into account.

(2)

In addition to above, such consumers shall be liable to pay the penalty for each contravention as follows:

(a)

consumers having contracted load up to 100 KVA, at Rs.50 per KVA on their contracted load.

(b)

Consumers, having contracted load above 100 KVA, and up to 500 KVA at Rs.30 per KVA on their contracted load subject to minimum of Rs.5,000.

(c)

Consumers having contracted load above 500 KVA at the rate of Rs.20 per KVA on their contracted load subject to minimum of Rs.15,000.

The reconnection shall only be done after payment of penalty and expiry of the above specified disconnection period whichever is later.]

10.

Power to exempt.

- [The State Government may, in public interest, exempt any consumer or class of consumers from the operation of any of the provisions of this Order to such extent and for such period as it thinks fit.]

[Substituted by Notification No. 8231 P-3-83-23, dated 6.12.1983.]

11.

Rescission and savings.

- The Uttar Pradesh Electricity (Regulation of Distribution and Consumption) Order, 1972, published under Notification No. 4484-ELC/XXIII, p.4, dated November 17, 1972, as amended from time to time is hereby rescinded and the provisions of Sections 6, 8 and 24 of the General Clauses Act, 1897 shall apply to its rescissions as they apply in relation to the repeal of an enactment by an Act of Parliament:

[Schedule 'A']

[Substituted by Notification No. 8108-P-3-84-23, dated 24.10.1984.]

Group

District

Days of Closures

1.

Aligarh, Azamgarh, Agra, Allahabad, Banda, Bijnor, Bareilly, Bara Banki, Ballia, Badaun, Bahraich, Bulandshahr, Etawah, Etah, Farrukhabad, Faizabad, Fatehpur, Gonda, Gorakhpur, Ghazipur, Ghaziabad, Hardoi, Hamirpur, Sitapur.

Monday, Tuesday and Wednesday

2.

Basti, Deoria, Jalaun, Jaunpur, Jhansi, Kanpur, Kanpur Dehat, Lalitpur, Lakhimpur Kheri, Lucknow, Moradabad, Mirzapur, Mathura, Mainpuri, Meerut, Muzaffarnagar, Pilibhit, Pratapgarh, Rae Bareilly, Rampur, Saharanpur, Shahjahanpur, Sultanpur, Varanasi, Unnao.

Thursday, Friday and Saturday

[Schedule 'B']

[Substituted by Notification No. 6758-P-3-84-23, dated 24.8.1984.]

Agra Allahabad, Bareilly, Gorakhpur, Rampur, Lucknow, Meerut and Varanasi

'C'

Aligarh, Almora, Chamoli, Dehra Dun, Faizabad, Ghaziabad, Jhansi, Mirzapur, Moradabad, Naini Tal, Pauri Garhwal, Pithoragarh, Rae Bareilly, Saharanpur, Sultanpur, Tehri-Garhwal and Uttarkashi.]

[Schedule 'D']

[Inserted by Notification No. 4567-P-3-84-23, dated 7.6.1984, now deleted by Notification No. 8109-P-3-84-23, dated 24.10.1984.]

[* * *]

Annexure I

Group 'A'

It consists of the following districts:

1. Aligarh, 2. Azamgarh, 3. Agra, 4. Allahabad, 5. Almora, 6. Banda, 7. Bijnor, 8. Bareilly, 9. Bara Banki, 10. Dehra Dun, 11. Ballia, 12. Budaun, 13. Bahraich, 14. Bulandshahr, 15. Chamoli, 16. Etawah, 17. Etah, 18. Farrukhabad, 19.

Faizabad, 20. Fatehpur, 21. Gonda, 22. Gorakhpur, 23. Ghazipur, 24. Ghaziabad, 25. Hardoi, 26. Hamirpur, 27. Sitapur.
Group 'B'

It consists of the following districts:

1. Basti, 2. Deoria, 3. Jalaun, 4. Jhansi, 5. Jaunpur, 6. Kanpur (City) and Kanpur (Dehat), 7. Lalitpar, 8. Kheri, 9. Lucknow, 10. Moradabad, 11. Mirzapur, 12. Mathura, 13. Mainpuri, 14. Meerut, 15. Muzaffarnagar, 16. Naini Tal, 17. Pilibhit, 18. Partapgarh, 19. Pauri Garhwal, 20. Pithoragarh, 21. Rae Bareli, 22. Rampur, 23. Saharanpur, 24. Shahjahanpur, 25. Sultanpur, 26. Tehri-Garhwal, 27. Unnao, 28. Uttarkashi, 29. Varanasi.

Annexure II

List of continuous Industries

1. Synthetic fibre, man-made fibre, rayon.
2. Tyres and tubes of rubber.
3. Synthetic rubber.
4. Chemicals.
5. Paper-straw board, pulp, card board.
6. Glass.
7. Acetylene and Oxygen.
8. Solvent extraction plant.
9. Galvanising, heat treatment, induction, heating running on continuous basis.
10. Aluminium refining and manufacturing.
11. Camphor.
- 12.

Cement.

13.

Sulphuric acid with contract process.

14.

Caustic Soda.

15.

Soda Ash.

16.

Oxygen for medical purposes.

17.

Distilleries and breweries.

18.

Vanaspati involving Hydrogenation, process (not applicable to refined oils).

19.

Chemical fertilizers.

20.

Drug manufacturing industries having fermentation process and having contracted load of more than 1 MVA.

21.

Fruit Preservation.

22.

Resin distillation.

23.

Rubber emulsifier.

24.

Milk chilling centres.

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